

Satendra Kumar Gupta v. State of U.P. And Others

High Court of Judicature at Allahabad · Division Bench · 22 February 2011 · WRIT - C No. 9314 of 2011 · **Writ dismissed; petitioner relegated to Supply Code for bills and recovery.**

HEADNOTE

A recovery citation for electricity dues outstanding before permanent disconnection cannot be tested in writ jurisdiction on the correctness of the underlying bills. The consumer must approach the competent authority under the U.P. Electricity Supply Code, 2005. The writ was dismissed with that observation.

FACTUAL SUMMARY

Satendra Kumar Gupta filed a writ petition in the Allahabad High Court seeking to quash a recovery citation dated 24 January 2011. The respondents stated that his electricity connection had been temporarily disconnected in 2008 and permanently disconnected on 25 April 2009, and that the citation sought recovery of dues outstanding prior to disconnection. The petitioner contended that an amount of Rs 30,000 deposited in 2007 had not been adjusted against those dues.

HOLDING-UNITS

HOLDING-UNIT · UP-2005

billing-dispute-writ

HOLDING

The correctness or incorrectness of electricity bills cannot be adjudicated in writ proceedings. Where a recovery citation is consequential to bills issued by the licensee, the consumer's remedy is to approach the competent authority in accordance with the U.P. Electricity Supply Code, 2005. The writ seeking to quash the citation dated 24 January 2011 was dismissed with that observation. ¶ 1

PRINCIPLE TAGS

relegate-to-statutory-remedy A recovery citation for electricity dues outstanding before permanent disconnection cannot be tested in writ jurisdiction on the correctness of the underlying bills. The consumer must approach the competent authority under the U.P. Electricity Supply Code, 2005. The writ was dismissed with that observation. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE ELECTRICITY BILLS AND WHETHER THE PETITIONER'S 2007 DEPOSIT OF RS 30,000 HAD BEEN ADJUSTED

Left to the competent authority under the U.P. Electricity Supply Code, 2005 ¶ 1